

Tentative Rulings for Department 403

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Tentative Ruling

Re: ***First Citizens Bank & Trust Co. v. Goncalves et al.***
Superior Court Case No. 26CECG00758

Hearing Date: July 21, 2026 (Dept. 403)

Motion: Plaintiff's Application for Writ of Possession

Tentative Ruling:

To deny in light of the entry of default against defendants Goncalves Living Trust LLC and Nathan Goncalves on June 9, 2026.

Explanation:

This motion requests a prejudgment writ of possession, which is proper before final adjudication of the claims sued upon. (*Sea Rail Truckloads, Inc. v. Pullman, Inc.* (1982) 131 Cal.App.3d 511, 514.) However, the default of both defendants was entered before the requisite hearing for plaintiff's writ of possession had taken place (defaults entered on June 9, 2026). The entry of default instantly cuts off a defendant's right to appear in the action or participate in the proceedings unless the default is set aside or judgment is entered (i.e., giving the defendant the right to appeal). (*Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.* (1984) 155 Cal.App.3d 381, 385.) Due process would not be served by allowing a plaintiff to give the defendant notice of a motion when defendant's right to defend itself regarding that motion had already been cut off. Plaintiff may proceed to obtain a judgment against defendants, and after judgment has been obtained it may proceed with all post-judgment enforcement procedures available.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on July 20, 2026.
(Judge's initials) (Date)